

In T 8/13 the appellant had requested to be given authorisation to make a sound recording of the oral proceedings. The board stated that sound recordings were not allowed and referred to the corresponding notice of the Vice-President of DG 3 (OJ SE 3/2007, 117).

7.6. Handwritten amendments during oral proceedings before the board

In T 1635/10 the board took note of the notice from the EPO of 8 November 2013 (OJ 2013, 603) regarding the practice on handwritten amendments to patent documents. In the case in hand, the documents as proposed for the maintenance of the patent contained handwritten amendments, carried out at the oral proceedings before the board. For the board to do what was required by the above notice would, in the case in hand, be detrimental to the principles of due process and procedural economy. The board therefore found that the documents as presented at the oral proceedings, for which the above checks could easily be performed and on which the appellant had had the opportunity to comment, were sufficient to base its (final) decision on. Since the department of first instance in any case would have to perform further formal steps before it actually maintained the patent in accordance with the board's order, it could apply its new practice to the relevant documents. See also T 37/12.

7.7. Interpreting in oral proceedings

As to the issue of interpreting costs during oral proceedings, see in this chapter III.C.8.2; for the application of R 4 EPC see chapter III.F.3. "Derogations from the language of the proceedings in written proceedings and in oral proceedings".

7.8. Oral submissions by an accompanying person

Reference is made to chapter III.V.5., "Oral submissions by an accompanying person".

7.9. Closing the debate

According to the established practice, the closing of the debate marks the last moment in the oral proceedings at which parties can still make submissions (T 595/90, OJ 1994, 695; G 12/91, OJ 1994, 285; R 10/08; R 14/10).

In T 577/11 the board held that if the debate on a particular topic had been closed without announcement of a decision on the matter, the board had discretion over whether it would re-open the debate and over the extent to which it would do so. A decision given orally by a board became effective and binding by virtue of being pronounced (see G 12/91). It excluded any re-opening of the debate. In addition to announcing a decision or re-opening the debate, the board could announce conclusions of its deliberations or invite the parties to discuss the next topic. A re-opening of the debate was an exception (cf. R 10/08) and there was no right of a party to have the debate re-opened.

With regard to re-opening the debate before the EPO departments of first instance, see T 683/14.

In T 888/17 the board held that there was no provision in the EPC pursuant to which a board was under an obligation to render a decision at the end of the oral proceedings and that it lay within the discretion of the board to continue the proceedings in writing if it considers that the matter was not ripe for a decision.

Examples of cases in which the debate has been re-opened are: T 932/04, T 577/11, T 117/15.

7.10. Minutes of oral proceedings (Rule 124 EPC)

According to R 124(1) EPC, minutes of oral proceedings and of the taking of evidence shall be drawn up, containing the essentials of the oral proceedings or of the taking of evidence, the relevant statements made by the parties, the testimony of the parties, witnesses or experts and the result of any inspection. According to Art. 12(1)(a) RPBA 2020 the appeal proceedings shall be based on the decision under appeal and minutes of any oral proceedings before the department having issued that decision.

7.10.1 Content of minutes

In T 642/97 the board stated that R 76 EPC 1973 (R 124 EPC) did not require that the minutes reflect the full arguments of the parties. It was within the discretion of the minute-writer to decide what he considered "essential" or "relevant" (see T 212/97; see also T 468/99, T 2185/15, T 2370/16: the board was responsible for deciding upon what was necessary to be recorded in the minutes). Whereas minutes were required to contain the requests or similarly important procedural statements, most of the arguments concerning patentability were normally apparent from the previous written submissions or from the facts and submissions in the written decision and did not need to be contained in the minutes.

In T 263/05 (OJ 2008, 329) the board held that the minutes of oral proceedings before the boards of appeal should record the requests of the parties on which a decision of the board is required, such as the allowability or otherwise of the appeal, the form in which the patent proprietor seeks maintenance of the patent, requests for remittal of the case or relating to appeal fees or costs. The minutes should also record specific statements which have an impact on the definition of the subject-matter, such as statements of surrender or abandonment of subject-matter, where these are relevant to the decision to be taken (see also T 212/97, T 928/98, T 550/04, T 71/06, T 2351/08, T 1934/14 of 8 October 2018, T 2370/16). The arguments of the parties concerning patentability should not be recorded. They will be apparent from the facts and submissions set out in the written decision.

According to the board in T 1934/14 of 8 October 2018, a request for interruption of the oral proceedings belonged to the essentials of the oral proceedings.

In T 397/03 the board held that the **text of requests** filed by a party at oral proceedings before the opposition division was an essential element that should be contained in the minutes. In T 240/09 the board held that, as far as the parties' requests were concerned,

only the final requests to be stated by the chairman before declaring the debate closed (Art. 15(5) RPBA 2007) were essential for the oral proceedings **on appeal**. Requests which had been withdrawn were usually irrelevant for the board's decision, and therefore not "essential". See also T 957/99, T 966/99.

In T 231/99 the board held that an **essential function** of the minutes was to record for the appellate body the essentials of the oral proceedings at the previous instance.

In T 396/89 the board held that if an important matter of fact was conceded, that **concession** ought to be carefully recorded in the minutes.

In T 1735/08 of 27 September 2012 the board held that there was no need under R. 124(1) EPC, nor was it usual practice in proceedings before the boards of appeal, to record in the minutes that the board had expressed a **provisional opinion on patentability** before announcing its decision. Where it was decided to set aside the contested decision and remit the case to the department of first instance for further prosecution, the set of claims on which that department was to base its fresh decision and the reasons why, in the board's opinion, that set of claims met some of the patentability requirements were not set out in the minutes, but rather in the reasons for the decision.

According to T 317/09 the relevance required under R. 124 EPC related to the decision to be taken by the board. The appellant's statement describing how it understood certain features of the invention neither affected the course of the proceedings, nor was it, as the **appellant's subjective assessment**, relevant for the decision to be taken by the board. See also T 468/99.

In T 281/03 of 17 May 2006 the board held that, in order to guarantee the right to be heard, there should have been an explicit step, recorded in the minutes of the **opposition division**, giving the opponent an opportunity to **comment on inventive step** before the final deliberation, or alternatively an opportunity after the deliberation to comment on the opposition division's conclusion that such an objection was not prima facie apparent. The fact that before the final deliberation "the floor was given to the opponent again" or that the opponent made a "last submission", reported in the minutes, was not enough to meet this requirement.

In T 1359/04 the board observed that the **examining division's introduction of new documents** only at the oral proceedings was an unusual step, and that the utmost care therefore had to be taken to safeguard the applicant's right to be heard. The proceedings should normally be interrupted to give the affected party sufficient opportunity to study the new evidence and reconsider how to present his case. The very function of the minutes in such cases was to document that the proper procedural steps had been duly taken.

In T 1798/08 the board held that it was not the function of the minutes to record statements which a party considers to be possibly relevant, such as the statement relating to the board's **alleged denial of the legal right to be heard**. This statement did not relate to the surrender or abandonment of subject-matter and did not otherwise have any impact on

the definition of the subject-matter to be dealt with by board. It did not form part of the essentials of the oral proceedings and was not relevant for the present decision, either.

In R 14/09 the Enlarged Board of Appeal held that an **objection under R. 106 EPC** must be recorded in the minutes since it was a relevant statement of a party (see R 17/10; see also R 2/12 of 17 October 2012 "at least at a party's request"; T 1934/14 of 8 October 2018). See chapter V.B.3.6.4 "Minutes as evidence that the objection was raised".

In T 2405/10 the appellant's request to include a statement regarding the problem-solution approach was made **after the proceedings had been closed**. As this statement was not part of the oral proceedings, there was no reason to include it in the minutes.

7.10.2 No recording of statements for use in subsequent national proceedings

According to T 928/98, T 263/05 (OJ 2008, 329), T 550/04, T 71/06, T 61/07 and T 916/09 it is not the function of the minutes to record statements which a party considers will be of use to it in any subsequent proceedings in national courts, for example in infringement proceedings as to the extent of protection conferred by the patent in suit. This is because such statements are not "relevant" to the decision which the board has to take, within the meaning of R 124(1) EPC. Such matters are within the exclusive jurisdiction of the national courts (see also T 1826/18). On this basis the board in T 550/04 concerning the opponent's request to record in the minutes that the expression "oxygen-free atmosphere" in claim 1 had the meaning of "completely oxygen-free atmosphere" stated that this statement would not have an impact on the definition of the subject-matter of the patent for the questions the board had to decide and was thus not proper subject-matter for the minutes. Concerning requests for recording statements of parties in the minutes, see also T 966/99, T 468/99, T 957/99, T 459/01, T 2009/08, T 1824/09.

7.10.3 Correction of minutes

It is the boards' settled case law that parties and their representatives are expected to check minutes carefully as soon as they receive them, especially to ensure that nothing is missing and that they are accurate, and to point out any deficiency promptly, since the minutes are the only means of ascertaining what actually occurred during the oral proceedings at first instance (T 1679/17). If a party was of the opinion that the minutes were incomplete or wrong, since essential submissions were not reflected at all in the file, it might request the opposition division to correct the minutes to preserve its rights (T 642/97, T 231/99, T 898/99, T 68/02, T 99/08). The same is true in proceedings before the examining division (T 937/07, T 2434/09). Concerning the boards of appeal, see T 1934/14 of 8 October 2018, T 888/17.

In T 162/09 the board held that the parties and their representatives could be expected to check the minutes carefully, especially to ensure that nothing was missing, immediately on receipt and to point out any deficiency promptly, since the minutes were the only means of ascertaining what had occurred during the oral proceedings. See also R 6/14.

In T 690/09 the appellant had not questioned the correctness of the minutes; the board held that the correctness of the minutes was therefore not formally in doubt and it had to consider the minutes as correctly reflecting the course of the oral proceedings. See also T 162/09, T 1138/12, T 1227/14, T 320/15.

In T 1005/08 the board held that, according to the consistent jurisprudence of the boards of appeal, it was in principle the department before which oral proceedings had been held which was competent to correct its minutes of the oral proceedings (see also T 2150/15). Where parties consider the minutes of oral proceedings to be incomplete or wrong because essential submissions are not or inaccurately reflected, it is their own responsibility to ensure their rights are safeguarded by asking the department that issued them to correct them accordingly (T 1481/19).

In T 231/99 it was held that the board's responsibility for the decision on the validity of the patent did not extend to deciding on the accuracy of the minutes of first instance proceedings (see also T 1198/97, T 162/09, T 2150/15). In T 508/08 the board stated that if the department of first instance (opposition division) saw fit to ignore its obligations (to respond to a request for correction of the minutes) there was nothing the board could do; it had no power to compel the division to fulfil them (see also T 803/12, T 2150/15).

In T 212/97 the board explained that only decisions could be contested. Since the minutes of oral proceedings were neither a decision nor part of the decision, they could not be "annulled" by the board of appeal (see also T 838/92, T 68/02). A procedural violation could be said to have occurred if the limits of the minute-writer's discretion as to what he considered "essential" or "relevant" were overstepped, e.g. if a party's unambiguous statement of surrender were omitted from the minutes.

In T 1063/02 the board held that it could not order the amendment of the opposition division's minutes of oral proceedings unless they manifestly and definitely differed from the actual course of the proceedings.

In T 740/00 the appellant informed the opposition division of its opinion that the minutes did not reflect the actual conduct of the proceedings. Instead of examining whether the minutes actually fulfilled the requirements of R 76(1) EPC 1973 and then deciding whether or not to correct them, the opposition division argued in essence that the minutes were correct because the minutes said so. The board considered such a reasoning circular and thus as not fulfilling the requirements of R 68(2) EPC 1973, which required decisions of the EPO to be reasoned. This constituted a procedural violation (cf. T 819/96).

In T 4/00 the board held that the decisions on the correction could not be taken by the formalities officer as that would be contrary to the requirements of R 76(3) EPC 1973 (R 124(3) EPC), from which it was clear that only members of the opposition division bore responsibility for the minutes.

In T 1721/07 the board refused the appellants' request that a summary they had drawn up of the parties' various arguments and the board's conclusions be added to the minutes of the oral proceedings. It observed that preparation of the minutes of oral proceedings was